

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)**

Present:

Mr. Justice Md. Shohrowardi

Criminal Appeal No. 4054 of 2017

with

Criminal Appeal No. 4055 of 2017

with

Criminal Appeal No. 4056 of 2017

**Abu Kasem @ Md. Abul Kasem and another
.....appellant in all the appeals.**

-versus-

**The state and another
.....respondent in the all the appeals**

Mr. Sheikh Awsafur Rahman, Advocate with

Mr. Eeshith Monzul Shohiny, Advocate

.... For the appellants in all the appeals

Mr. Sakib Rejwan Kabir, Advocate

...For the respondent No. 2 in all the appeals

Mr. S.M. Golam Mostofa Tara, DAG with

Mr. A. Mannan, AAG with

Mr. Md. Shaifour Rahman Siddique, AAG

....For the State in all the appeals.

Heard on 16.05.2023, 24.05.2023, 09.07.2023

12.07.2023, 13.07.2023 and 25.07.2023.

Judgment delivered on 31.07.2023

The above-mentioned criminal appeals have arisen out of the impugned judgments and orders passed by the trial court relating to the same offence allegedly committed by the appellants during several years.

Therefore, all the appeals were heard analogously and disposed of by this single judgment.

The Criminal Appeal No. 4054 of 2017 is directed against the impugned judgment and order of conviction and sentence dated 23.02.2009 passed by Divisional Special Judge, Chattogram in Special Case No. 13 of 2003 arising out of Kotwali Police Station Case No. 07(7)2001 corresponding G.R. No. 602 of 2001 convicting the appellants 1. Abul Kasem @ Md. Abul Kasem and 2. Samsul Alam under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and sentencing them to suffer rigorous imprisonment for 04 (four) years under section 409 of the Penal Code, 1860 and a fine of Tk. 10,000, in default, to suffer imprisonment for 06(six) months and sentencing them under section 5(2) of the Prevention of Corruption Act, 1947 to suffer rigorous imprisonment for 02(two) years and a fine of Tk. 27,552 against appellant Abul Kasem, to pay a fine of Tk. 1,14,926 against appellant Samsul Alam and forfeiting the moveable and immoveable property of the appellants in favour of the state and sentence passed against them will run concurrently.

The Criminal Appeal No. 4055 of 2017 is directed against the judgment and order of conviction and sentence dated 23.02.2009 passed by Divisional Special Judge, Chattogram in Special Case No. 15 of 2007 arising out of Kotwali Police Station Case No. 07(7)2001 corresponding G.R. No. 602 of 2001 convicting the appellants 1. Abul Kasem @ Md. Abul Kasem and 2. Samsul Alam under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and sentencing them to suffer rigorous imprisonment for 04(four) years under section 409 of the Penal Code, 1860 and a fine of Tk. 10,000, in default, to suffer imprisonment for 06(six) months and sentencing them to suffer rigorous imprisonment for 02 (two) years under section 5(2) of the Prevention of Corruption Act, 1947 and a fine of Tk. 2,24,195 against appellant Abul Kasem and a fine of Tk. 1,87,744 against appellant Samsul Alam and

forfeiting the moveable and immoveable property of the appellants in favour of the State and the sentence passed against them will run concurrently.

The Criminal Appeal No. 4056 of 2017 is directed against the judgment and order of conviction and sentence dated 23.02.2009 passed by Divisional Special Judge, Chattogram in Special Case No. 16 of 2007 arising out of Kotwali Police Station Case No. 07(7)01 corresponding G.R. No. 602 of 2001 convicting the appellants 1. Abul Kasem @ Md. Abul Kasem and 2. Samsul Alam under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and sentencing them to suffer rigorous imprisonment for 04(four) years under section 409 of the Penal Code, 1860 and a fine of Tk. 10,000, in default, to suffer imprisonment for 06 (six) months and sentencing them to suffer rigorous imprisonment for 02(two) years under section 5(2) of the Prevention of Corruption Act, 1947 and fine of Tk. 2,71,352 against appellant Abul Kasem and fine of Tk. 1,11,171 against appellant Samsul Alam and forfeiting the moveable and immoveable property of the appellants in favour of the State and the sentence passed against them will run concurrently.

The prosecution case, in short, is that the appellants are the Trade Licence Inspector of the Chattogram City Corporation. They were entrusted with the duty to collect the trade licence fee and renovation of the trade licence of the businessmen under the Chattogram City Corporation. A committee was formed to make inquiry as regards the realization of the fee of the trade licence for the year 1997 to 1998 and 1998 to 1999. In the inquiry report, it has been mentioned that the accused Abul Kalam realized Tk. 27,552.50 between 1997 to 1998, Tk. 2,24,195 between 1998 to 1999 and Tk. 2,71,352.50 between 1999 to 2000, total Tk. 5,23,150 and he deposited Tk. 1,87,744.50 for the year 1998 to 1999, Tk. 1,27,171.50 for the year 1999 to 2000. The accused Samsul Alam realized Tk. 1,14,926 from 1997 to 1998, Tk. 1,87,744.50 in the year 1998 to 1999 and Tk.

1,27,171.50 in the year 1999 to 2000, total Tk. 4,29,842. The accused Akter Hossain realized Tk. 20,682.50 in the year 1997 to 1998, Tk. 65,794.50 in the year 1998 to 1999 and Tk. 1,30,847.50 in the year 1999 to 2000, total Tk. 2,17,324.50 but the accused persons without depositing the entire amount in the account of the City Corporation misappropriated a part of the realised amount.

At the very outset, it is noted that one Abdul Wahab, the then CEO of Chattogram City Corporation, Chattogram lodged FIR on 03.06.2001 at 22.55 with Kotwali Police Station, Chattogram against the appellants and another Akter Hossain under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 for misappropriation of Tk. 11,70,267 of the trade licence fees realised from 1997 to 2000. After lodgment of the FIR, S.I. Md. Abul Kalam took up investigation of the case and after completing investigation submitted charge sheet on 08.04.2002 against the appellants and another under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947. After that, the Divisional Special Judge, Chattogram by order No. 17 dated 16.06.2004 directed to submit separate charge sheets for the offences committed during each year. Thereafter, the record was sent to the concerned police station by the Chief Judicial Magistrate, Chattogram and after that, 03 separate charge sheets were submitted against the appellants under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947. Following 03 charge sheets, 03 charges were framed in Special Case Nos. 13 of 2003, 15 of 2007 and 16 of 2007 under section 409 of the Penal Code, 1860 and under section 5(2) of the Prevention of Corruption Act, 1947. In all the Special Cases, facts are similar except the date of commission of the alleged offence and the amount of misappropriation.

In Special Case No. 13 of 2003, the prosecution examined 06 witnesses to prove the charge against the appellants. The appellants were absconding and only co-accused Akter Hossain was present during trial and

he was examined under section 342 of the Code of Criminal Procedure, 1898. After concluding trial, the trial court by impugned judgment and order convicted the appellants as stated above and acquitted co-accused Akter Hossain on the ground that after submission of the initial charge sheet, he deposited the entire amount alleged to have been misappropriated by him.

The witnesses examined by the prosecution in Special Case No. 13 of 2003 are as follows;

P.W. 1 Abdus Sukur is the Revenue Officer, Chattogram City Corporation. He stated that the accused persons were the Licence Inspector of Chattogram City Corporation. They were entrusted with the duty to collect the trade licence fee and to deposit the realized amount in the account of the City Corporation. A five members inquiry committee was constituted headed by the Revenue Officer A.R. Chowdhury (not examined) to ascertain the total amount of the trade licence fee realized by the accused persons from 1997 to 2000. After examination of the accounts of 4(four) years, the inquiry committee found that accused Akter Hossain realized Tk. 2,17,000, accused Abul Kashem realized Tk. 5,23,000 and accused Samsul Alam legalized Tk. 4,13,000 as trade licence fee but they did not deposit the same amount in the account of the City Corporation. As the convener, he submitted audit report on 08.04.2001 for the year 1997-1998 and 1998-1999. He proved the audit report dated 08.04.2001 as exhibit-1 and his signature as exhibit-1/1. The audit report for 1999 to 2000 was also included in their report. During cross examination on behalf of the accused Akter Hossain, he stated that he was the convener of the inquiry committee which submitted the report on 08.04.2001 but he was not the convener of the inquiry committee for 1999 to 2000 but he was the convener of the inquiry committee for 1997 to 1998 and 1998 to 1999 and in the original inquiry report, he included the report of 1999 to 2000. He also stated that provably he filed separate reports for 1997 to 1998 and 1998 to 1999. In the report dated 08.04.2001 submitted for 1999 to 2000, he did not give any

reference of the report submitted by A.R. Chowdhury. He affirmed that after perusal of the trade licence book, counter foil and cash register, he submitted the report. He did not find the government audit report for 1997 to 1998, 1998 to 1999 and 1999 to 2000. He heard that co-accused Akter Hossain deposited the entire amount on 02.05.2002 and 17.06.2002 alleged to have been misappropriated by him by deposit slips.

P.W. 2 Md. Syed is the Deputy Tax Officer of the DTO, Circle-3, Dewanerhat, Chattogram. He stated that the occurrence took place from 1997 to 2000. On 02.01.2001, a five members committee was formed headed by Revenue Officer, A.R. Chowdhury for the year 1999 to 2000 to make inquiry regarding realization of licence fees. Subsequently, on 15.02.2001 another five members committee was constituted headed by Revenue Officer, Abdus Sukkur for the year 1997 to 1998 and 1998 to 1999 and he was the member of that committee. The said committee after examining the records submitted report on 8.04.2001. He proved his signature on the report dated 08.04.2001 (exhibit-1) as exhibit-1/2. As per the said report, accused Akter Hossain misappropriated Tk. 2,17,324.50 and during pendency of the case, he deposited the entire amount. Accused Samsul Alam misappropriated Tk. 4,13,842 and accused Abul Kashem misappropriated Tk. 5,23,150 during 03 (three) years. He affirmed that on the basis of the records, they have produced the trade licence book and proved the year wise account as exhibit-2 series. For official purpose, Trade Licence Book was returned. During cross-examination on behalf of the accused Aktaruzzaman, he admitted that he deposited the entire amount.

P.W. 3 Abdus Sabur stated that he was the member of the inquiry committee formed to ascertain as to whether the trade licence fees were correctly deposited in the account of the City Corporation. The inquiry committee submitted a joint report for the year 1997 to 2000. He proved his signature on the report(exhibit-1) as exhibit-1/1. During cross-examination on behalf of the Aktaruzzaman, he admitted that the accused Akter Hossain deposited entire amount.

P.W. 4 Goutam Sen Gupta is the Licence Assistant of Chattogram City Corporation. He stated that in 2001, he was discharging his duty in the same post. The accused persons did not deposit the licence fee collected by them for which an inquiry committee was formed and he was the member of the said committee. He proved his signature as exhibit-1/4 on exhibit-1. During cross-examination on behalf of the accused Akter Hossain, he stated that accused Akter Hossain deposited the money but other accused-persons did not deposit their money.

P.W. 5 M. Abul Chowdhury is the UDA of the Chattogram City Corporation. He stated that he was the member of the inquiry committee. Thereafter, he was tendered by the prosecution and declined by the defence.

P.W. 6 Sub-Inspector Md. Abul Kalam is the Investigating Officer of the case. During investigation, he visited the place of occurrence, prepared the sketch map and index, seized alamats and prepared the seizure list. During investigation, he found truth of the allegation made against the accused persons and submitted charge sheet under section 409 of the Penal Code, 1860 and read with section 5(2) of the Prevention of Corruption Act, 1947. Subsequently, as per direction of the court, the Investigating Officer Mofazzal Hossain Sanwar submitted charge sheet for each year against the accused persons for misappropriation of Tk. 10,63,161. In Special Case No. 13 of 2003 Tk. 1,63,161, Tk. 4,77,734 in Special Case No. 15 of 2007 and Tk. 5,29,371.50 in Special Case No. 16 of 2007 were misappropriated by the accused persons. During cross examination on behalf of the accused Akter Hossain, he affirmed that he seized the deposit slips to prove that after realization of the money, the accused persons did not deposit the same but those deposit slips are not lying with the records.

It is further noted that in the above mentioned 03 cases, P.W.1 Abdus Sukur was examined as P.W. 1, Md. Syed was examined as P.W. 2, Abdus Sabur was examined as P.W. 3, Goutom Sen Gupta was examined as P.W. 4 and Abul Chowdhury was examined as P.W. 5 and Inspector Md.

Abul Kalam was examined as P.W. 6 and their evidence are same. Therefore, to avoid the repetition, I refrained from producing the english version of the evidence of those witnesses recorded in connection with Special Case Nos. 15 of 2007 and 16 of 2007.

Learned Advocate Mr. Sheikh Awsafur Rahman appearing along with learned Advocate Mr. Eeshith Monjul Shohiny on behalf of the accused persons submits that under section 6(1B) of the Criminal Law Amendment Act, 1958 separate charge sheets for the offence alleged to have been committed over the period of one year is not permissible and the accused persons could have been tried in one trial for the offences allegedly committed over the period of one year. Therefore, the trial court passed the impugned judgment and order of conviction and sentence violating the provision made in section 6(1B) of the Criminal Law Amendment Act, 1958. He further submits that no specific evidence was adduced by the prosecution regarding the misappropriation of trade licence fee for each year and under section 26 of General Clauses Act, 1897 no separate sentence can be awarded against the accused persons for the same offence committed under different enactments. Therefore, the impugned sentences passed by the trial court both under section 409 of the Penal Code, 1860 and section 5(2) of the Prevention of Corruption Act, 1947 are illegal. He also submits that the Anti-Corruption Commission Act, 2004 came into force on 09.05.2004 and after that, separate charge sheets were submitted by S.I. Mofazzel on 09.11.2006 and cognizance was taken on 05.07.2007 by Metropolitan Senior Special Judge, Chattogram on the basis of the charge sheet dated 09.11.2006 although pending investigation is required to be conducted under section 38 (3) and 20 of the Anti-Corruption Commission Act, 2004 only by the Anti-Corruption Commission. Therefore, the trial held on the basis of the charge sheets submitted by the police is without jurisdiction. He also relied on the decision made in the case of the State vs. Ibrahim Ali, reported in 66 DLR(AD) 33, in the case of ATM Nazimullah

Chowdhury vs State and another, reported in 65DLR 500 and in the case of Habibur Rahman Molla vs. State, reported in 61 DLR 1.

The learned Advocate Mr. M.S. Azim appearing on behalf of the respondent No. 2 submits that a five members committee was constituted headed by P.W. 1 to make enquiry as regards realization of trade licence fee of Chattogram City Corporation and after enquiry, the enquiry committee submitted report on 08.04.2001 (exhibit-1) against the accused persons relying on the trade licence books (exhibit-2 series) for misappropriation of the trade licence fees realized by them. He further submits that at the time of initial investigation, the police officer was authorized to investigate the case and following the order dated 16.06.2004 passed by the Divisional Special Judge, split charge sheets for each year were submitted. The prosecution witnesses proved the charge against the accused persons beyond all reasonable doubt. He also relied on the decision made in the case of Abdul Noor vs State reported in 9 DLR 1957, 633 and Bimal Chandra Adhikari vs State reported in 51 DLR 282.

I have considered the submission of the learned Advocate Mr. Sheikh Awsafur Rahman who appeared on behalf of the accused in all the appeals and the learned Advocate Mr. M.S. Azim who appeared on behalf of the respondent No. 2 in all the appeals, perused the evidence, impugned judgment and order passed by the trial court and the records.

On perusal of the records, it appears that P.W.1 proved the inquiry report dated 08.04.2011 as exhibit-1 which was prepared relying on the trade licence books (exhibit-2 series). In the report dated 08.04.2001 (exhibit-1), the five member inquiry committee found that accused Abul Kashem misappropriated Tk. 27,552.50 in the year 1997 to 1998 and accused Samsul Alam misappropriated Tk. 1,14,926 in 1997 to 1998. The accused Abul Kasem misappropriated Tk. 2,24,195.50 in the year 1998 to 1999 and the accused Samsul Alam misappropriated Tk. 1,87,744.50 in the year 1998 to 1999. The accused Abul Kasem misappropriated Tk.

2,71,352.50 and accused Samsul Alam misappropriated Tk. 1,11,171.50 in the year 1999 to 2000. The accused Abul Kasem misappropriated total Tk. 5,23,100.50 and accused Samsul Alam misappropriated total Tk. 4,13,842

Section 1(3) of the Anti-Corruption Commission Act, 2004 states that the said Act shall come into force on the date of publication of notification in the official Gazette. The gazette was published on 09.05.2004 and the cognizance of the offence was taken on 05.07.2007 by the Metropolitan Special Judge, Chattogram on the basis of the charge sheets dated 09.11.2006 filed by S.I. Mofazzel Hossain. On perusal of the charge sheets dated 09.11.2006 submitted by S.I. Mofazzel (not examined) it reveals that in fact the said I.O only split-up the charge sheets following the order dated 16.06.2004 passed by the Divisional Special Judge and all the documents were seized and investigation was done by the first investigating officer P.W. 6 S.I. Md. Abul Kalam. Therefore, no illegality was committed by the trial Court in holding trial on the basis of the split charge sheets.

The above view of this court lends support from decision made in the case of *Abdur Noor vs. the State* reported in 9 DLR (1957) 633. Relying on the decision made in the case of *Crown Vs Noor Alam* reported in 7 PLD (Lah) 667 High Court Division held that;

“We have considered the cited authority very carefully and we have no hesitation in accepting the reasons given for coming to the various findings. We follow that decision, and, accordingly, hold that, although the facts in the present case are stronger from the point of view of the appellant than the facts in the cited authority, the principles enunciated therein would also be applicable to the facts of this case. We, accordingly, hold that although the sub-inspector of police was not authorised by a first class

Magistrate to conduct the investigation, the subsequent trial held cannot be said to have been vitiated on that account.”

Subsequently, in the case of Bimal Chandra Adhikari vs the State, reported in 51 DLR 289 para 7 High Court Division reiterated the view made in the case of Abdur Noor (Supra) and held that;

“But an investigation of an offence by an Assistant Inspector of the Bureau of Anti-Corruption, as in the instant case, instead of by an Inspector as requires by the provision of section 5A of the Act, that said to have been committed under section 5 of the Act without the order of the Magistrate and that thereafter initiation of a proceeding on the basis of the prosecution report submitted by the Assistant Inspector of the Bureau of Anti-Corruption and that holding of trial of the person against whom prosecution report was submitted as seen from the judicial pronouncements is not an illegality but an irregularity and that for said irregularity trial or in other words proceeding initiated and trial commenced will not be vitiated. In this respect reference may be made to the case of Crown vs Nur Alam reported in PLD 1955 (Lahore) 667. In the said reported case it has been observed that “Even if the investigation had not been in conformity with the legal provisions of the proviso to section 3 of the Prevention of Corruption Act, it did not necessarily follow that the subsequent trial was vitiated.”

Trade Licence Books (exhibit-2 series) is the basis of the report dated 08.04.2001 (exhibit-1) prepared by the five members enquiry committee. Furthermore, the accused persons were absconding during trial of the case and they did not cross examine the prosecution witnesses and the evidence of prosecution witnesses remained uncontroverted. Therefore, in the absence of audit report for the year 1999 to 2000 accused persons were not prejudiced in their defence. The prosecution is always bound to prove the charge against the accused beyond all reasonable doubt. Mere

absconsion of accused itself is not evidence against the accused to convict him.

The Criminal Law Amendment Act, 1958 is a Special Law and has the primacy over the provision made in the Code of Criminal Procedure, 1898. Therefore, section 234 of the Code of Criminal Procedure, 1898 is not applicable in the instant case. In view of the provision made in Sub-section 1 (B) of section 6 of the Criminal Law Amendment Act, 1958, the offence committed by an accused over the period of 01 (one) year could be tried upon framing one charge in one trial.

It is found that the trial court convicted the accused persons and sentenced them both under section 409 of the Penal Code, 1860 and section 5(2) of the Prevention of Corruption Act, 1947 for the same offence committed over the period of 01(one) year. Under section 26 of the General Clauses Act, 1897, the trial court is not empowered to pass separate sentence against the accused persons for the same offence committed by them under different enactments. In the instant case, the accused persons were sentenced under section 409 of the Penal Code, 1860 and section 5(2) of the Prevention of Corruption Act, 1947 in defiance of the provision made in section 26 of the General Clauses Act, 1897.

In the case of State vs Ibrahim Ali reported in 66 DLR (AD) 33 para 20 it has been held that;

“ The Provisions of section 222(2) read with section 234 (1) require that if there are more than one offences committed over a period of more than 12 months then the offences may not be charged in one charge, whereas section 6(1B) provides that any number of offences punishable under the Criminal Law Amendment Act irrespective of the period over which the offence was committed, may be tried at one trial. Clearly, therefore, the provision in the

Criminal Law Amendment Act is not consistent with the provision of the Code of Criminal Procedure thereby ousting the applicability of the provisions of the Code in proceedings before the Court of Special judge. Hence, all the offences committed over any length of period of time could be tried in one trial upon framing one charge.”

In the case of ATM Nazimullah Chowdhury vs the State reported in 65 DLR 500 para 66 it has held that;

“What we are trying to drive at boils down to this: the provisions of section 222 and section 234 of the Code of Criminal Procedure are to be read conjointly and not in isolation. It goes without saying that the Code of Criminal Procedure, 1898 is a general adjective law whereas the Criminal Law Amendment Act, 1958 is a special adjective law. In that view of the matter, the provisions of the special law will prevail over those of the general law. Sub-section (IB) of section 6 of the Criminal Law Amendment Act envisages that a person accused of more offences than one under this Act may be tried at one trial for all such offences. So it is seen that the limitation of one year as contained in the proviso to sub-section (2) of section 222 is not applicable for trial of a person accused of more offences than one under the Criminal Law Amendment Act”

In the case of Habibur Rahman Molla vs State judgment dated 20.11.2008 reported in 61 DLR 1 considering the decisions reported in 60 DLR(AD) 147, 45 DLR 352, 42 DLR(AD) 250, 48 DLR(AD) 6, 13 MLR (AD) 102 the High Court Division has held that;

“The period of one year is available in section 234 of the Code of Criminal Procedure but it is absent in section 6(1B) of the Criminal Law Amendment Act and thereby in view of the provision laid down in section 6(1) of the Criminal Law Amendment Act, 1958 section 6(1B) excludes the application of section 234 which relates to the period of the commission of the alleged offence.”

In the case of Kazi Ahammad Bazlul Karim vs State reported in 11 BLC(2006) 60 para 71 judgment dated 29.08.2005 it has been held that;

“The criminal misconduct is a new offence created under the Prevention of Corruption Act which is quite distinguishable from criminal breach of trust punishable under section 409 of the Penal Code. The offence of criminal misconduct under section 5 of the Act postulates distinct and specific offence apart from those contained in the Penal Code. A public servant will only be prosecuted for the offence of criminal misconduct under section 5(2) of the Prevention of Corruption Act, 1947 as well as for the offence under section 409 of the Penal Code. There is no bar to the trial or conviction of the offender under two enactments but there is only a bar to the punishment of the offender twice for the same offence. Where the offence of the accused under section 409 of the Penal Code and also under section 5(2) of the Prevention of Corruption Act, 1947 are almost same, then he cannot be tried and convicted of the offence of these sections twice. Where an act constitutes an offence under two or more enactments, then the offender shall not be liable to be punished twice for the same offence under section 26 of the General Clauses Act.”

In the case of Md. Nurul Haque Howlader vs the State reported in 11 BLD (AD) 260 para 14 it has held that;

“A public servant who is entrusted with any property can use the same only for the purpose and/or in the manner he is required to do under any agreement, instruction, order or law. He cannot part with the property even temporarily or convert it for any other purpose beyond the terms governing such entrustment. If he cannot produce the property on demand without any satisfactory explanation, it will be presumed that he has committed a criminal breach of trust, no matter he thereafter makes good the loss by returning the same in cash or in kind.”

In the case of Kaisor-uz-Zaman vs State reported in 19 BLC (AD) 101 para 19 it has held that;

“We conclude by saying that since section 409 of the Penal Code was in the schedule to the Act, 1957, it was a part of it and had to be treated as an offence under the Act. Therefore, sub-section (3) of section 38 of the Ain, 2004 was applicable in respect of the investigation of offence under section 409 of the Penal Code. And in the case of the offences mentioned in the schedule to the Ain, 2004, be it an offence as contemplated in sections 26 and 27 thereof, or the offences under other laws as mentioned therein, section 32 of the Ain, 2004 shall be applicable.”

In the case of Md. Shahjahan Mia and others vs. the State and another passed in Criminal Appeal No. 3855 of 2018 this bench held that;

“Criminal breach of trust committed by public servant is also a criminal misconduct punishable under section 5(2) of the Prevention of Corruption Act, 1947. Section 26 of the General Clauses Act, 1897 prohibits double punishment under two different enactments but the said provision does not prohibit trial or conviction under different enactments. Section 26 of the General Clauses Act,

1897 states that where an act or omission constitutes an offence under two or more enactments, then the offender shall be liable to be prosecuted and punished under either or any of those enactments, but shall not be liable to be punished twice for the same offence.”

In view of the above facts and circumstances of the case, evidence, findings and the proposition, I am of the view that the prosecution proved the charge under section 409 of the Penal Code read with section 5(2) of the Prevention of Corruption Act, 1947 against the accused persons beyond all reasonable doubt.

The trial of 03 cases are considered as a single trial in awarding the sentence against the accused persons. Considering the gravity of the offence and the agony of trial in 3 cases arising out of same FIR, I am of the view that ends of justice would be best served if the sentence of imprisonment passed by the trial court is modified as under:

The accused Abul Kasem @ Md. Abul Kasem is found guilty of the offence under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and he is sentenced to suffer imprisonment for 01 year under section 409 of the Penal Code, 1860 and fine of Tk. 5,23,150.

The accused Samsul Alam is found guilty of the offence under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and he is sentenced under section 409 of the Penal Code, 1860 to suffer rigorous imprisonment for 01 year and to pay a fine of Tk. 4,13,842.

In view of the provision made in section 35A of the Code of Criminal Procedure, 1898 the custody of the accused persons will be deducted from the sentence passed by this Court.

In the result, the appeals are disposed of with modification of sentence.

Send down the lower Court's record at once.

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